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SECURITIES AND EXCHANGE BOARD OF INDIA

NOTIFICATION

Mumbai, the 13th July, 2017

SECURITIES AND EXCHANGE BOARD OF INDIA

(EMPLOYEES' SERVICE) (THIRD AMENDMENT) REGULATIONS, 2017

No. SEBI/LAD-NRO/GN/2017-18/010 .— In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely,—

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, after regulation 25, the following regulation shall be inserted, namely,—

“25A. Grant of increment on promotion grade

(1) Without prejudice to anything contained in regulation 24, where an employee is promoted to a higher grade on or after November 1, 2012,—

- (a) before reaching the maximum of the incremental scale in the pre-promotional grade, the date of the next increment in the promotional grade shall be the date of increment as existing in the pre-promotional grade.

(b) after having reached the maximum of the incremental scale in the pre-promotional grade, the date of the next increment in promotional grade shall be one year from the date of promotion:

Provided that after having reached the maximum of the incremental scale in the pre-promotional grade, in cases where the officer promoted was due to receive, any post scale benefits such as personal allowance and stagnation increment in the pre-promotional grade within one year from the date of actual promotion, the date of increment in the promotional grade shall be the date of accrual of such post scale benefit.”

Sd/-
AJAY TYAGI
CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees’ Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).
2. The Securities and Exchange Board of India (Employees’ Service) Regulations, 2001 were subsequently amended –
 - (a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.
 - (b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2004 vide S.O. No.623(E).
 - (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
 - (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2009-10/28/190983.
 - (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees’ Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
 - (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
 - (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/03/5290.

- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LAD-NRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LAD-NRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBI-NRO/OIAE/GN/2015-16/002.
- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.
- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.
- (n) On 27th April, 2017 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.
